LENDERSPARK FINANCE LIMITED

Versus

UNITED REFINERIES LIMITED

AND

SHINGAI T MABHENA

IN THE HIGH COURT OF ZIMBABWE
MPOKISENG DUBE J
BULAWAYO, 24 OCTOBER 2025 AND 13 NOVEMBER 2025

Opposed Application for a Declarator

Adv P. Dube with B.I Masamvu, for the applicant
K. Ncube, for the 1st respondent
No Appearances for the 2nd Respondent

M DUBE J: At the hearing of this matter I handed down an *ex tempore* ruling striking the matter from the roll after declining to exercise my jurisdiction over the matter *mero motu*. The applicant desirous to note an appeal has requested for my reasons and here they are.

Brief facts

The applicant brought forth an application for a declaratory order and ancillary relief. The salient facts of the matter were as follows: -

1. On or about the 30th of October 2024, the applicant and the 1st respondent entered into a Memorandum of Agreement ("herein after called the MOA") whereunder the applicant would advance payroll deduction loans to selected employees of the 1st respondent, pre-vetted for the purpose by the 2nd respondent. A copy of the agreement was attached as Annexure A2.
2. The material terms of the agreement were, paraphrased, as follows:
    a. The 1st respondent, through the office of the 2nd respondent, would identify employees/members of the 1st respondent who, in its opinion, would qualify for the payroll deduction loans offered by the applicant.
    b. The 1st respondent was, to submit to the applicant, proof of employment of the members pre-vetted and qualified by it for the loans.

c. The applicant would enter into loan agreements with the employees submitted by the 1st respondent, through the office of the 2nd respondent, and would, on the strength of the documentation provided by the 1st respondent and on the strength of the vetting process already undertaken, by the respondents, disburse loans to the members identified and submitted by the 2nd respondent

d. The 1st respondent was to ensure repayment of the loans through deductions from the pay/salary of each member to whom a loan was advanced, and submitting the deducted amounts to the applicant. A bundle of documents was attached purporting to be the various loan agreements and proof of employment of the various individuals.

Pursuant to this Memorandum of Agreement the applicant disbursed varying sums of money to purported employees of the 1st respondent as loans. When payment was due none was forthcoming leading to the applicant issuing various letters of demand to the 1st respondent.

The 1st respondent denied any liability and if anything conducted an internal investigation which culminated in a police report and the arrest of the 2nd respondent. As it turned out all the loan recipients were never employees of the 1st respondent except the 2nd respondent himself.

The total amount prejudiced to the applicant as at the 25th May 2025, is pegged at US$131,831.79.

The applicant herein seeks the following relief before this court:

1. It is declared that the 1st respondent is bound by the provisions of the Memorandum of Agreement signed by the 2nd respondent on the 30th October 2024.

2. It is declared, accordingly, that the 1st respondent is liable, as provided in that agreement, to the applicant, for the repayment of all loans disbursed by the applicant to alleged employees of the 1st respondent.

3. 1st respondent consequently be directed to pay to the applicant a total of US$131,831.79 as at 21st May 2025 plus interest at 6.5% per month calculated from the 22° May 2025, to date of full payment.

ALTERNATIVELY TO 3 ABOVE:

4. The parties be and are hereby directed to present their case before an Independent arbitrator appointed by the President of the Law Society of

Zimbabwe, in terms of the above-mentioned Memorandum of Agreement, for the quantification of the amount due by the 1st respondent to the Applicant.

5. The respondents shall pay the applicant's costs of suit at attorney client scale, jointly and severally, the one paying to absolve the other.

At the opening of the hearing the applicant took a preliminary point objecting to the validity of the 1st respondent's opposing affidavit. It was argued that the person who purported to commission the document did not state his designation and therefore cannot be accepted to have been a commissioner of oaths at the time he so administered the oath.

It was argued that by reason of that defect, there was not opposing affidavit and resultantly no Notice of Opposition.

Counsel for the 1st respondent argued that he was waylaid in ambush in that the point was adverted to in the answering affidavit in the form of the commissioner of oaths' stamp not being dated. That argument was seemingly abandoned by the applicant only to spring a surprise and argue today that the commissioner of oaths did not insert his designation. Counsel for the 1st respondent lamented his inability to make any meaningful submissions on the issue. He nonetheless argued that the commissioner of oaths inserted his name, his contact address and telephone numbers. Further that his stamp describes him as a commissioner of oaths.

I find the preliminary objection by the applicant to be meritorious. Despite its manner of taking I allowed them to pursue the objection as it is a point of law that can be taken at any stage of the proceedings.

The attestation of an affidavit requires that certain solemnities be complied with in the absence of which it is invalid (see *S v Hurle & Ors 1998 (2) ZLR 42 (H).* One of the solemnities that must be observed is that the person attesting an affidavit must appear before a Commissioner of Oaths. The two must be in the same place, at the same time and on the same day. (See also *Mandishayika v Sithole HH-798-15*)

> "An affidavit is a written statement made on oath before a commissioner of oaths or other person authorised to administer oaths. The deponent to the statement must take the oath in the presence of the commissioner of oaths and must append his or her signature to the document in the presence of such commissioner. Equally the commissioner must administer the oath in accordance with the law and thereafter must append his or her signature onto the statement in the presence of the deponent. The

commissioner must also endorse the date on which the oath was so administered. These acts must occur contemporaneously." (underlining for my own emphasis)

In the present matter the 1st respondent's opposing affidavit has an advance organiser which reads as follows:

"Thus done and sworn to at *Bulawayo* this *12th* day of June 2025."

The deponent then signed. Below his signature is the controversial part. It appears as follows:

"Before Me:……

Commissioner of Oaths

The individual conducting the solemnities affixed a stamp with the initials

"A.B.K CHIVIGE
COMMISSIONER OF OATHS
28 COWDRAY PARK BYO ZIM
071316776/0775848658"

When one has regards to the Justices of the Peace and Commissioners of Oaths Act [*Chapter 7:09*] it provides as follows:

"3. Appointment of justices of the peace

(1)The Minister may appoint justices of the peace for Zimbabwe or for any one or more districts.

(2)The Minister may cancel any appointment made in terms of subsection (1).

(3)Every appointment or cancellation of an appointment in terms of this section shall be notified in the Gazette."

……..

6. Appointments of commissioners of oaths

(1)The Minister may appoint commissioners of oaths for Zimbabwe or for any one or more district.

(2)The Minister may cancel any appointment made in terms of subsection (1).

(3)Every appointment or cancellation of an appointment in terms of this section shall be notified in the Gazette.

7. Ex officio commissioners of oaths

(1)A justice of the peace shall ex officio be a commissioner of oaths for the area for which he has been appointed a justice of the peace.

(2)The Minister may by notice published in the Gazette, designate the holder of any office as a commissioner of oaths for Zimbabwe or for any one or more districts specified in such notice and may in like manner withdraw or amend such notice."

In casu it is not clear if this Mr Chivige was acting as a commissioner of oaths by virtue of him having been appointed a justice of the peace in terms of section 3 of the Justices of the Peace and Commissioners of Oaths Act *supra*. If that is the case is his appointment still valid as it is subject to withdrawal by the responsible minister? Without knowing the capacity in which he exercises such powers of a commissioner of oaths, I am not convinced with the validity of his authority.

It is for that reason that I upheld the applicant's preliminary objection. The 1st respondent's opposing affidavit is therefore expunged from the record with the result that there is no Notice of Opposition and they are accordingly barred.

Is the application before court valid?

I am of the respectful view that this matter now proceeds as an unopposed application. Despite such status, my mind was further exercised by the validity of the application before court and the competence of the relief sought.

This application is brought forth on the basis of a memorandum of agreement executed between the parties. The applicant contends that it's valid and binding between the parties. That is why it seeks to impute vicarious liability on the 1st respondent for the actions of the 2nd respondent. For that to happen the applicant wants this court to accept the said agreement to be binding and effectual.

At clause 16 of the said Memorandum of Agreement it provides as follows:

16.1 This Agreement shall be governed by and construed in accordance with Zimbabwean laws.

16.2 Any dispute between the parties in regard to;

i. the interpretation of;

ii, the effect of;

iii. the parties' respective rights and obligations under;

iv. a breach of, or;

v. any matter arising out of this Agreement shell be decided by Arbitration in the manner set out below.

16.2.1 The said arbitration shall be held, subject to the provisions of this clause, at Harare informally and otherwise in accordance with the provisions of the Arbitration Act [Chapter 7:15], as amended, it being the Intention that if possible, it shall be held and concluded within twenty-one (21) working days after it has been demanded."

With such clear provisions of its own agreement the applicant cannot with respect cherry pick. As the author of the document, it carved out its intentions, aspirations and remedies. It should therefore abide by them.

It is not the duty of the courts to draw up contracts for the parties. They have all the freedom to contract as high or as low as they may wish.

In the hallowed English case of *Printing & Numerical Registering Company v Sampson (1875)* LR 19 Eq @ 462-465 it was held as follows:

> "….. if there is one thing which more than another public policy requires it is that men of full age and competent understanding shall have the utmost liberty of contracting, and that their contracts when entered into freely and voluntarily shall be held sacred and shall be enforced by Courts of justice. Therefore, you have this paramount public policy to consider—that you are not lightly to interfere with this freedom of contract."

See also *Munyanyi v Liminary Investments & Anor* HH-38-2010.

I am convinced that in the present matter the applicant applied its mind fully to the drawing up of the contract it now seeks to enforce and it did so freely and voluntarily. It therefore can not be the first to seek to resile from its own contract.

It is for that reason that this court of its own motion declines to exercise its jurisdiction over the matter.

Disposition

In the foregoing the matter be and is hereby struck from the roll with costs.

Masamvu & Da Silva-Gustavo Law Chambers, applicant's legal practitioners
Gill, Godlonton & Gerrans, 1st respondent's legal practitioners